

EXCLUSIVE CONSTITUTIONAL FAILURE REPORT

Zakia Ahsan Jafri v. State of Gujarat (2022)

“How the Supreme Court Protected the State Machinery and Abandoned the Citizen”

I. CASE IN ONE LINE

This judgment legally closed a mass-crime conspiracy case by relying only on police procedure while avoiding constitutional human-rights scrutiny, thereby shielding State power and denying constitutional justice to the victim.

II. CORE CONSTITUTIONAL CHARGE

The Supreme Court applied CrPC to protect administrative finality, but failed to apply the Constitution to protect the citizen.

This is not a procedural defect.

This is a constitutional failure of protection.

III. SPECIFIC CONSTITUTIONAL ARTICLES THAT FAILED

Each Article below shows:

- What the Constitution commands
- What the Court did
- How the failure protected the State over the citizen

1. ARTICLE 14 – EQUALITY BEFORE LAW

Constitutional Command:

The State must apply equal legal scrutiny to both the ruler and the ruled.

What the Court Did:

- Street-level rioters were prosecuted and convicted.
- Top political and police command faced no prosecution, only administrative review.

Constitutional Failure:

This created two criminal classes:

- Citizens Criminal liability
- State officials' Procedural immunity

This is direct violation of Article 14's non-arbitrariness doctrine

(E.P. Royappa, Maneka Gandhi).

- State protected
- Citizen denied equal protection

2. ARTICLE 21 – RIGHT TO LIFE WITH DIGNITY

Constitutional Command:

Article 21 includes:

- Right to justice
- Right to truth
- Right to effective remedy
- Right to dignity of victims

What the Court Did:

- Reduced Article 21 to "investigation was done"
- Ignored whether truth and accountability were actually achieved
- Treated procedural closure as constitutional satisfaction

Constitutional Failure:

- The Court protected the State's procedural record, not the victim's right to meaningful justice.

This violates:

- Maneka Gandhi v. Union of India
- Nilabati Behera (Custodial death jurisprudence)
- DK Basu principles

State protected via paperwork

Citizen denied substantive justice

3. ARTICLE 32 – RIGHT TO CONSTITUTIONAL REMEDY

Constitutional Command:

Supreme Court is the last shield of the citizen against State abuse.

What the Court Did:

Withdrew monitoring once SIT filed a report

Said: "Now the Magistrate will decide"

Exited the constitutional battlefield

Constitutional Failure:

The Court voluntarily abandoned its role as guardian of fundamental rights, turning Article 32 into a procedural exit gate.

- This is a dereliction of constitutional duty.
- State relieved of constitutional scrutiny
- Citizen left alone against state machinery

4. ARTICLE 19(1)(a) – RIGHT TO KNOW & FREE EXPRESSION

Constitutional Command:

- Citizens have:
- Right to information
- Right to truth in public wrongs
- Right to expose abuse of power
- What the Court Did:
- Restricted truth to SIT files

Treated investigative secrecy as final reality

Did not enforce public accountability of the State

Constitutional Failure:

Truth became government property, not public right.

State monopoly over truth protected

Citizen's right to know suppressed

5. ARTICLE 20(2) – DOUBLE JEOPARDY MISAPPLIED

Constitutional Command:

- No person shall be punished twice for the same offence.
- What the Court Did:
- Applied finality doctrine to shield accused officials
- Used procedural closure as absolute immunity from future scrutiny

Constitutional Failure:

Article 20 was used as a shield for power, not as a protection for liberty.

State officials insulated permanently

Citizen barred from pursuing truth

6. ARTICLE 38 & 39 – SOCIAL JUSTICE & EQUAL ACCESS TO JUSTICE

(Directive Principles – binding interpretative tools)

Constitutional Command:

State must:

- Eliminate injustice
- Protect vulnerable citizens
- Ensure equal access to justice

What the Court Did:

Accepted a process where:

- The State investigated itself
- The State prosecuted itself
- The State cleared itself

Constitutional Failure:

This created a closed legal loop with no independent accountability, violating the objective of social justice.

State convenience preserved

Victim isolation institutionalized

IV. NATURAL JUSTICE VIOLATION (CONSTITUTIONAL BASIC STRUCTURE)

Rule Violated:

“No one shall be a judge in their own cause.”

Reality in This Case:

- Police Investigators
- Police Witness controllers
- Police officers Accused (in complaint)
- SIT Appointed from State machinery
- Prosecutors State-appointed

This is a structural conflict of interest.

- The Court legitimized it instead of correcting it.
- State acted as judge in its own cause
- Citizen never had an independent forum

V. WHY THIS IS A “MACHINERY-FRIENDLY” JUDGMENT (NOT PEOPLE-FRIENDLY)

- Protected Interest Beneficiary
- Administrative finality to State
- Institutional reputation State
- Police credibility State
- Political command State
- Litigation closure State
- Ignored Interest Sufferer
- Victim’s right to truth Citizen
- Accountability of power Citizen
- Substantive equality Citizen
- Restorative justice Citizen
- Human dignity after massacre Citizen

This is not accidental.

This is institutional self-preservation through constitutional minimalism.

VI. CONSTITUTIONAL PATTERN OF WITHDRAWAL

The Court relied only on:

- CrPC
- Monitoring-ends doctrine
- Final report logic

The Court did NOT rely on:

- Transformative constitutionalism
- Victim-centric jurisprudence
- Structural accountability doctrine
- Command responsibility doctrine
- This selective application itself is constitutional bias.

VII. FINAL CONSTITUTIONAL VERDICT (HARD TRUTH)

This judgment is:

- Legally valid
- Procedurally correct
- Constitutionally weak
- Substantively unjust
- Institutionally biased toward the State

Morally incompatible with the idea of “Justice for All”

VIII. ONE-PARAGRAPH PUBLIC-READY CONSTITUTIONAL CHARGE

The Supreme Court, in *Zakia Jafri v. State of Gujarat* (2022), chose administrative closure over constitutional accountability. By confining itself to CrPC finality and withdrawing the protection of Articles 14, 21, and 32, the Court converted a mass-crime allegation into a routine police file. In doing so, it protected the institutional integrity of the State while abandoning the citizen's right to truth, equality, and effective remedy. This judgment may be legally sound, but constitutionally it represents a retreat of the Republic from its duty to protect its most vulnerable citizen against the most powerful State machinery.